

# 25STCP04501 25STCP04501

County: los-angeles

Division: Civil Law and Motion

Department: 833

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Case Number: 25STCP04501 Hearing Date: September 9, 2026 Dept: 833

Adrianne Smith, Case No. 25STCP04501

Hearing:

September 9, 2026

v. Location:

Stanley Mosk Courthouse

Department:

833 Los

Angeles County Civil Service Judge:

Joseph Lipner

Commission

and

Real-Party-in-Interest

County of Los Angeles and

County

of Los Angeles Probation Department

Order

Denying Petition for Writ of Mandate

INTRODUCTION

Smith Adrienne Smith ("Smith") moves for a writ of mandate directing the Court to overturn the Los Angeles Civil Service Commission's ("Commission") decision upholding the decision of real-party-in-interest Los Angeles County Probation Department (the "Department") decision to dismiss Smith.

The Court DENIES the petition for writ of mandate.

## BACKGROUND

A.

The incident on May 26, 2023

Smith served as a Transportation Deputy with the Probation Department. (AR 3, 82.)

The Department's witnesses included Sergeant Carabajal and Carina Ruiz. Carabajal and Ruiz asserted that the following incident occurred on May 26, 2023:

Smith walked into Sergeant Carabajal's office at the East Los Angeles (ELA) Courthouse and was argumentative and irate. (AR 560, 565, 575, 585, 682.) She complained that the Sheriff's office was not providing proper security, not monitoring the probation officers, not monitoring the deputies, and not watching the cameras. (AR 576.) Smith also introduced herself using a fake name: Mrs. Sweets. (AR 575.)

Sergeant Carbajal requested a piece of paper to write down Smith's complaints. (AR 578.) Smith stated, "What the hell are you doing?" (AR 579.) Carbajal responded that he was a mandated reporter and was required to report the complaint. (AR 579.) Smith then referred to a third person in the room, Carina Ruiz, by saying, "What is she, your fucken snitch? Is she a rat?" (AR 579.) Ruiz then removed herself from the situation. (AR 579.) The situation continued to escalate; Smith blew up and then left the office. (AR 581.)

Ruiz,

for her part, did not recall the profanity but did recall Smith asking if she was a rat. (AR 775-776.) A third witness interviewed, Yvette Reyes, said there was no profanity. (AR 160.)

Carabajal

memorialized his version of events in an email to a superior, Ricardo Aceves. (AR 245.)

Smith

testified to a different version of events.

She denied parts of Carabajal and Ruiz's account, including that she called Ruiz a snitch and walked out of the office. (AR 500.) She stated that she conducted herself professionally and would not have changed anything. (AR 503.)

After

the incident, the Los Angeles Sheriff's Department requested that Smith not be allowed to return to the East LA Courthouse and that she not have any contact with any East LA Courthouse personnel. (AR 235.) The end result was that Smith was not able to transport youth or work at East Los Angeles Courthouse. (AR 235.)

B.

The

incidents on August 10, 2023

Smith

herself testified that, on August 10, 2023, Smith and Deputy Roa were getting off an elevator while escorting a minor. (AR 1057.) Smith walked straight down the hallway and put a radio and keys on a table. (AR 1057.)

Carabajal

testified that the radios cost around \$9,500. (AR 700.) Radios must be returned to the deputy who is working in the control area. (AR 806.) Carabajal testified as to his concern that an inmate could have grabbed the key if an official escorting the inmate was walking the other way. (AR 751-752.)

After

the incident, Carabajal sent an email complaining about the incident to the

Department. He explained that when Smith tried to leave the facility, Carbajal had lockup personnel prevent Smith from leaving until Smith had returned the keys and radio. (AR 468, 469.) At this point, he asserted, Smith became argumentative, started yelling, "you see me standing here open the damn door!" (AR 469.) Carbajal described her as animated and very unprofessional. (AR 616.) Smith eventually returned her radio and keys. (AR 469.) For her part, Smith testified she did nothing wrong in this situation. (AR 533.)

Carbajal's

email to the Department also complained that Smith was on her cell phone in a secure area. (AR 468.) Carbajal testified that It is against the law to have a cell phone in a secure area. (AR 697.) It is also against Probation's policy and the Sheriff Department policy to have electronic devices in any secure area within Los Angeles County. (AR 697.) Smith had signed a form, agreeing to the cell phone policy. (AR 603.)

C.

The

incident on April 2, 2024

On

April 2, 2024, Smith was served with notice she was to be interviewed by the Internal Affairs Bureau. (AR 252.) According to Ruiz, Smith then attempted to influence Ruiz's testimony: "[Smith] let me know that she was being investigated... She told me my name was on it as a witness and if they were to call me just to tell them that I didn't know anything about it." (AR 250, 777, 794-795.)

Besides

from Smith and Ruiz, the Internal Affairs Bureau interviewed Carbajal and Deputy Yvette Reyes. (AR 232.) The Department's decisionmaker testified that Deputy Reyes's transcript did not factor into the Department's ultimate decision of how to resolve this case. (AR 967.)

D.

Post-Dismissal

On

June 25, 2024, Smith was discharged from her position of Transportation Deputy with the Probation Department and from County service. (AR 3.) The discharge

was based on the following grounds: (1) conduct unbecoming a peace officer; (2) discourtesy; (3) interfering in an administrative investigation; (4) Failure to follow established rules and regulations; and (5) failure to exercise sound judgment. (AR 4.)

On  
July 10, 2025, the Commission's Hearing Officer issued her report, finding that the Department substantiated its allegation against Smith and recommended sustaining the discharge. (AR 74-91.)

However,  
the Commission's hearing officer criticized the Department's decision to withhold a transcript of a third witness, Deputy Reyes, though the hearing officer noted that the withholding of a transcript did not rise to the level of a due process violation. (AR 78.)

On  
October 1, 2025, the Civil Service Commission announced its intent to accept the findings and recommendation of the hearing officer. (AR 93.)

On  
November 7, 2025, the Commission issued its final decision, after no objections were timely filed. (AR 94.)

This  
petition followed.

#### LEGAL STANDARD

Under Code of  
Civil Procedure section 1094.5, subd. (b), the pertinent issues are whether the respondent has proceeded without jurisdiction, whether there was a fair trial, and whether there was a prejudicial abuse of discretion. An abuse of discretion is established if the agency has not proceeded in the manner required by law, the decision is not supported by the findings, or the findings are not supported by the evidence. (Code Civ. Pro. § 1094.5, subd. (b).)

Because the  
decision to discharge Smith concerns a fundamental vested right, the

independent judgment standard applies to the factual findings made by Respondent. (See *Wences v. City of Los Angeles* (2009) 177 Cal.App.4th 305, 314.) Under the independent judgment test, “the trial court not only examines the administrative record for errors of law, but also exercises its independent judgment upon the evidence disclosed in a limited trial de novo.” (*Bixby v. Pierno* (1971) 4 Cal. 3d 130, 143.) The court may draw its own reasonable inferences from the evidence and make its determinations as to the credibility of witnesses. (*Morrison v. Housing Authority of the City of Los Angeles Board of Commissioners* (2003) 107 Cal. App. 4th 860, 868.) “In exercising its independent judgment, a trial court must afford a strong presumption of correctness concerning the administrative findings, and the party challenging the administrative decision bears the burden of convincing the court that the administrative findings are contrary to the weight of the evidence.” (*Fukuda v. City of Angels* (1999) 20 Cal. 4th 805, 817; see also Evid. Code § 664.)

Smith bears the burden of proof to demonstrate, by citation to the administrative record, that the weight of the evidence does not support the administrative findings. (*Strumsky v. San Diego County Employees Retirement Assn.* (1974) 11 Cal.3d 28, 32; *Steele v. Los Angeles County Civil Service Commission* (1958) 166 Cal. App. 2d 129, 137.) Smith “must identify (with citations to the record) the factual findings made by the board that he or she is challenging and demonstrate (with citations to the record) why those factual findings were against the weight of the evidence.” (*Shenouda v. Veterinary Medical Bd.* (2018) 27 Cal.App.5th 500, 513.) A reviewing court “will not act as counsel for either party to an appeal and will not assume the task of initiating and prosecuting a search of the record for any purpose of discovering errors not pointed out in the briefs.” (*Fox v. Erickson* (1950) 99 Cal.App.2d 740, 742 (Fox).) When an appellant challenges “the sufficiency of the evidence, all material evidence on the point must be set forth and not merely [his] own evidence.” (*Toigo v. Town of Ross* (1998) 70 Cal.App.4th 309, 317.)

“On questions of law arising in mandate proceedings, [the court] exercise[s] independent judgment.” (*Christensen v. Lightbourne* (2017) 15 Cal.App.5th 1239, 1251.) The interpretation of statute or regulation is a question of law. (See *State Farm*

Mut. Auto. Ins. Co. v. Quackenbush (1999) 77 Cal.App.4th 65, 77.) In addition, “[a] challenge to the procedural fairness of the administrative hearing is reviewed de novo on appeal because the ultimate determination of procedural fairness amounts to a question of law.” (Nasha L.L.C. v. City of Los Angeles (2004) 125 Cal.App.4th 470, 482.)

## DISCUSSION

A. The decision was based on consistent testimony from the witnesses

Smith’s first argument is that there is no evidence that she engaged in any policy violations that warranted discharge. Specifically, Smith argues that the testimony provided by Carbajal differed from the testimony provided by Security Officer Ruiz. (Opening Brief, 5:4-6:28.) This argument is meritless and ignores the consistent, specific testimony provided by these witnesses:

Both Security Officer Ruiz and Carbajal described the May 26th, 2023 incident when Smith stormed into the office, upset, and making complaints. (AR 560-563, 682-683, 774-775.) Carbajal used the words “very irate” and “yelled.” Ruiz described Smith as “upset... very unprofessional... came storming in... just loud.” (Ibid.) Both reported Smith called Ruiz a “rat” and/or “snitch.” (AR 245-246; 775.) Both reported Smith gave a false name. (AR 565, 684, 776.) Both said Smith accused others of not doing their job. (AR 683, 775.)

Smith argues that Ruiz was clear Smith did not use profanity, while Carbajal was certain she did. This is not a persuasive argument. Ruiz testified she did not hear everything that was stated during the incident on May 26, 2023. (AR 800.) Additionally, Ruiz never stated that Smith did not engage in profanity. (AR 563.) Indeed, Ruiz testified she did not recall whether Smith used inappropriate language. (AR 776.)

Smith also claims “inconsistency” over when Carbajal first learned Smith’s real name. Exercising its independent judgment, the Court finds that this line of questioning is irrelevant. Regardless of whether the Court accepts every last detail of Ruiz or Carbajal’s story, this essential fact remains the same: Smith was complaining that Sheriff Department employees were not doing their jobs and Smith gave a false name when

asked to identify herself. (AR 77-78.) The Court agrees with the hearing officer that the focus on whether Smith was wearing a uniform and using profanity is “just noise to muddy” the underlying problematic actions. (AR 78.)

Smith also takes issue with Carbajal’s testimony that he walked the building after Smith left the office, contrasted with Ruiz who testified Carbajal was just returning. (Opening Brief, 6:11-25.) The argument is also unpersuasive, and unrelated to the main accusations Smith made and Smith’s decision to use a false name. Even so, Ruiz did not observe what Carbajal did after Smith left and did not recall if Carbajal made another round. (AR 791-792.) The record suggests Ruiz did not contradict Carbajal. She just did not know.

Smith also argues that the transcript of Deputy Reyes would have shown inconsistencies in Sergeant Carbajal’s responses. This argument is unpersuasive. It is unclear whether Deputy Reyes even witnessed the incident on May 26, 2023. Neither Carbajal and Ruiz mentioned that Reyes was present for the May 26th conversation. (AR 226, 245, 560, 862-863, 1063.) In fact, it was Reyes’s day off. (AR 1063.) Reyes also reported that the May 26th incident involved Probation using cell phones on floors where Probation kept juveniles. (AR 155.) Ruiz and Carbajal never discussed cell phones. Deputy Reyes’s transcript does not provide a good rationale for the Court to issue a writ of mandate.

Smith also questions (1) the Department’s decision to not even share the transcript of Deputy Reyes with the person who ultimately dismissed Smith; and (2) the Department’s decision to not include the Reyes transcript in the exhibits to the hearing officer with testimony about why the information was not credible. (Opening Brief, 8:1-12.)

These points are not persuasive. The record shows that Reyes’ interview responses were fully and accurately summarized for the decision maker. (AR 225, 226, 965.) The decision-maker knew exactly how Reyes supported Smith but he also knew Reyes was not at work on the day Reyes claims to have participated in the May 26th conversation. (AR 963, 964, 965, 991, 1063.)

Second, there is no requirement that every investigation item be produced. Rather, “preremoval safeguards must include notice of the proposed action, the reasons therefor, a copy of the

charges and materials upon which the action is based, and the right to respond, either orally or in writing, to the authority initially imposing discipline." (Skelly v. State Personnel Bd. (1975) 15 Cal.3d 194, 215.) The Reyes transcript was not part of "the materials upon which the action is based." (AR 966-967.)

Third, the Department included Reyes' interview as Exhibit 38. (AR 636-650.) Smith also admitted it as an exhibit. (AR 994.) The Commission had the full transcript before its decision.

Exercising its independent judgment, the Court finds that Ruiz and Carbajal offered similar testimony about the May 26, 2023 incident. Deputy Reyes's account (AR 154-168) does not change the Court's conclusion..

B. Smith's argument that Carbajal was biased has no basis

Smith argues that Carbajal was biased against her. (See, e.g., Opening Brief, 5:1-17; 8:17-22.) Smith seems to be hoping to create an argument out of thin air. The evidence shows that Carbajal oversaw security and was supposed to deal with personnel issues. (AR 676, 679.) As a supervisor, Smith had to report any misconduct brought to his attention. (AR 237, 579.) Carbajal saw Smith leave keys and radios in the middle of a lockup area in an unsecured area. (AR 712.) Carbajal was concerned about an inmate taking the keys and radios. (AR 713, 753) Carbajal would not be doing his job if he ignored Smith's conduct.

Smith is also simply wrong that the three incidents were generated by communications from Carbajal. Director Michael Montes forwarded the May 26th incident of investigation. (AR 217-218.) Director Dominic Gonzalez requested investigation of the August 10th incident. (AR 311.) Ruiz reported Smith's attempt to tamper with witnesses. (AR 250.) Video recorded Smith's August 10th conduct. (AR 474.)

Exercising its independent judgment, the Court finds that an argument that Carbajal was biased against Smith is unpersuasive and contrary to the record as a whole.

C. Smith's argument that discharge was not the appropriate discipline is unpersuasive

Smith's

last argument is that she should not have been discharged because (1) this was the Department's decision-maker's first discipline decision above a five-day suspension; (2) Smith's prior discipline was for unrelated reasons and was a long time ago; and (3) Smith had an overall good track record.

"With

respect to the question of penalty, the superior court's powers of review are quite limited, and are exercised only with great deference to the administrative agency's findings." (Deegan v. City of Mountain View (1999) 72 Cal.App.4th 37, 45.) "Neither the trial court nor the appellate court is entitled to substitute its discretion for that of the administrative agency concerning the degree of punishment imposed. [Citation.] The trial court may vacate but not modify the agency's determination of penalty if it finds a manifest abuse of discretion." (Id., at pp. 45-46.)

The

"overriding consideration is the extent to which the employee's conduct resulted in... '[h]arm to the public service'." (Skelly v. State Personnel Bd. (1975) 15 Cal.3d 194, 218.) In cases involving dishonesty, discharge is often appropriate. (See, e.g., County of Santa Cruz v. Civil Service Commission (2009) 171 Cal.App.4th 1577, 1583; Kolender v. Civil Service Commission (2005) 132 Cal.App.4th 716, 721-722

Smith

cites no legal authority indicating that because a decision-maker had never instituted a discipline decision above a five-day suspension, a decision-maker is prohibited from ever instituting such discipline. Smith also offers no explanation for why prior discipline being well in the past or Smith having an overall good track record should mean the Court should reverse the discharge decision.

The overwhelming in the record shows that Smith

attempted to pressure a witness, despite a policy that employees cannot contact other employees for the purpose of interfering with their cooperation in an investigative process. (AR 78-79, 227-228, 250, 268-269.) The policy also states that all investigations must be confidential, and employees who fail to

cooperate with the admonition not to discuss matters outside the investigative setting could be the subject of discharge. (AR 268.) The Department decided discharge was appropriate, in full compliance with their stated policy.

The overwhelming evidence in the record also shows that Smith violated Directive 1211, which explains that it is not appropriate to utilize cell phones while performing supervision duties. (AR 603.) Smith signed and dated the form, suggesting she understood the policy around phones, and the fact that corrective activity could occur as a result of a violation of the policy. (AR 603.)

There is a strong public policy against having dishonest employees in the state service. (*Gee v. California State Personnel Bd.* (1970) 5 Cal.App.3d 713, 719.) False statements and misrepresentations and omissions of material facts in official reports are grounds for dismissal, even for the first offense of dishonesty. (*Paulino v. Civil Service Com.* (1985) 175 Cal.App.3d 962, 972.) The evidence showed that Smith used a false name, Mrs. Sweets. (AR 245, 575.) Smith attempted to get another witness to say lie during the investigative process. (AR 78-79, 227-228, 250, 268-269.)

The fact that Smith may have had a good track record in the past does not outweigh the public policy against dishonesty.

In deciding whether an abuse of discretion existed, one key factor to assess is the likelihood of recurrence. (*Warren v. State Personnel Bd.* (1979) 94 Cal.App.3d 95, 108.) Smith exhibited no remorse, and claimed she had done nothing wrong, suggesting she has done nothing to learn from her behavior. (AR 82.)

Even apart from Smith's prior disciplinary history, the Court exercises its independent judgment and finds that discharge was an appropriate measure to take.

## CONCLUSION

The Court DENIES the petition for writ of mandate.

Pursuant to Local Rule 3.231, subd. (n),  
the Department shall prepare, serve, and ultimately file a proposed judgment.

IT IS SO ORDERED.

Dated: September  
9, 2026

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Joseph  
Lipner

Superior  
Court Judge